

1 ENGROSSED SENATE
2 BILL NO. 904

By: Gollihare, Hall, Green,
Seifried, Thompson, Rosino,
Hamilton, and Bullard of
the Senate

4 and

5 Kannady and Stinson of the
6 House

7
8 An Act relating to gender transition procedures;
9 defining terms; prohibiting certain use of public
10 funds; proscribing certain reimbursement; prohibiting
11 certain use of state facilities; providing criminal
12 penalty; providing for codification; and declaring an
13 emergency.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1-800 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 A. As used in this section:

19 1. a. "Gender transition procedures" means the following
20 medical or surgical services performed for the purpose
21 of attempting to affirm an individual's perception of
22 his or her gender or biological sex, if that
23 perception is inconsistent with the individual's
24 biological sex:

- (1) surgical procedures that alter or remove physical or anatomical characteristics or features that are typical for the individual's biological sex, or
- (2) puberty-blocking drugs, cross-sex hormones, or other drugs to suppress or delay normal puberty or to promote the development of feminizing or masculinizing features consistent with the opposite biological sex.

b. Gender transition procedures do not include:

- (1) behavioral health care services or mental health counseling,
- (2) medications to treat depression and anxiety,
- (3) medications prescribed, dispensed, or administered specifically for the purpose of treating precocious puberty or delayed puberty in that patient,
- (4) services provided to individuals born with ambiguous genitalia, incomplete genitalia, or both male and female anatomy, or biochemically verifiable disorder of sex development (DSD), including but not limited to:
 - (a) 46,XX DSD,
 - (b) 46,XY DSD,

1 (c) sex chromosomes DSDs,

2 (d) XX or XY sex reversal, and

3 (e) ovotesticular disorder,

4 (5) the treatment of any infection, injury, disease,
5 or disorder that has been caused by or

6 exacerbated by the performance of gender

7 transition procedures, whether or not the gender

8 transition procedure was performed in accordance

9 with state and federal law, or

10 (6) the treatment of any physical injury or illness

11 that would, as certified by a physician, place

12 the individual in imminent danger of death or

13 impairment of a major bodily function unless such

14 treatment is performed; and

15 2. "Public funds" means state funds from any source including,
16 but not limited to, appropriations, apportionments, or revenue
17 generated by state agencies through fines, fees, or any other means.

18 B. Public funds shall not be used, granted, paid, or
19 distributed to any entity, organization, or individual for the
20 provision or subsidy of any gender transition procedures, regardless
21 of whether the procedures are provided to a minor or an adult.

22 C. The state Medicaid program shall not reimburse or provide
23 coverage for any gender transition procedures, regardless of whether
24 the procedures are provided to a minor or an adult.

1 D. No state property, facility, or building may be used to
2 provide gender transition procedures, regardless of whether the
3 procedures are provided to a minor or an adult.

4 E. Any officer or employee of this state who intentionally
5 violates the provisions of this section shall, upon conviction, be
6 guilty of a misdemeanor.

7 SECTION 2. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11 Passed the Senate the 25th day of March, 2026.

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13 _____
14 Presiding Officer of the Senate

15 Passed the House of Representatives the ____ day of _____,
16 2026.

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18 _____
19 Presiding Officer of the House
20 of Representatives
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